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| CASE #      | CASE NAME            | HEARING NAME                                                               |
|-------------|----------------------|----------------------------------------------------------------------------|
| CVPS2400400 | BUXBAUM VS MCFARLAND | HEARING RE: MOTION FOR ORDER REQUIRING DEFENDANTS TO PAY EXPENSES OF PROOF |

**Tentative Ruling:** No tentative ruling. Hearing was continued to 9.11.26.

2.

| CASE #      | CASE NAME                | HEARING NAME                                                      |
|-------------|--------------------------|-------------------------------------------------------------------|
| CVPS2509973 | BIG HORN 1, LLC. VS URSO | HEARING RE: MOTION FOR PRELIMINARY INJUNCTION BY BIG HORN 1, LLC. |

**Tentative Ruling:** The purpose of a preliminary injunction is to preserve the status quo pending trial on the merits. In order to issue a preliminary injunction, the Court must balance the parties' interests. In balancing the parties' interests, the Court must exercise discretion "in favor of the party most likely to be injured . . . ." (*Robbins v. Superior Court* (1985) 38 Cal.3d 199, 205.) The Court is to consider two interrelated factors: 1) which party will suffer the greater injury from denial of the injunction (*Shoemaker v. County of Los Angeles* (1995) 37 Cal.App.4th 618, 633); and, 2) is there a reasonable probability that plaintiffs will prevail on the merits at trial. (*Robbins, supra*, 38 Cal.3d at 206.) "The trial court's determination must be guided by a 'mix' of the potential-merit and interim-harm factors; the greater the plaintiff's showing on one, the less must be shown on the other to support an injunction." (*Butt v. State of California* (1992) 4 Cal.4th 668, 678.) It is the plaintiff's burden to "show all elements necessary to support issuance of a preliminary injunction." (*O'Connell v. Superior Court* (2006) 141 Cal.App.4th 1452, 1481.)

#### Balance of Hardships:

First, we must consider the injury to both parties should the injunction be granted or denied. Irreparable harm is often related to an "inadequate legal remedy," meaning the damages remedy is inadequate because some immeasurable harm is threatened. Courts will not ordinarily grant injunctive relief unless someone will be significantly hurt in a way that cannot later be repaired. (*People ex rel. Gow v. Mitchell Brothers' Santa Ana Theater* (1981) 118 Cal.App.3d 863, 870-871.) However, irreparable harm "does not mean 'injury beyond the possibility of repair or beyond possible compensation in damages.'" (*Donahue Schriber Realty Group, Inc. v. Nu Creation Outreach* (2014) 232 Cal.App.4th 1171, 1184.)

Injunctions will rarely be granted (absent specific statutory authority) where a suit for damages provides an adequate remedy. (See *Thayer Plymouth Ctr., Inc. v. Chrysler Motors Corp.* (1967) 255 Cal.App.2d 300, 307.) In support of the motion, Plaintiff cites *Dennis v. Overholtzer* (1960) 179 Cal.App.2d 110, where the Court of Appeals affirmed an order requiring a tenant to deposit rental proceeds he owed on the property at issue with the county clerk during the pendency of the action. The present dispute is different. Defendant is not a tenant paying rent on a property owned by Plaintiff, as in *Dennis v. Overholtzer*.

As the court noted in denying the motion to appoint a receiver, Plaintiff has not provided any evidence "demonstrating that the property is in danger of being lost, removed, or materially injured." (7/1/26 Minute Order.) Also, in ruling on the previous motion, the court noted: "Plaintiff has not explained why an injunction ordering Defendant